

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

9. CRYSTAL RENEE STUCK V. DUSTIN ELLIOT STUCK

25FL0708

On February 25, 2026, the parties appeared before the court in Department 8 for hearing on the Request for Domestic Violence Restraining Order filed by Petitioner. The parties stipulated to a two year restraining order with Respondent and the minor as protected parties. The parties were referred to Child Custody Recommending Counseling (CCRC) for custody and visitation orders and a review hearing was set for the present date.

Respondent filed a supplemental declaration on May 7th, it was served on May 6th.

The parties attended CCRC on April 2, 2026. The parties were unable to reach any agreements, therefore a report with recommendations was prepared on May 6, 2026, and another on May 12, 2026, it was mailed to the parties on May 13th.

On May 14th, Respondent filed an Objection to Petitioner's Supplemental Declaration Signed 5/13/26. It was served on the 14th.

Petitioner filed an objection to the CCRC report on May 18th. It was served on the 17th.

The parties are ordered to appear to select dates for an evidentiary hearing.

TENTATIVE RULING #9: THE PARTIES ARE ORDERED TO APPEAR TO SELECT DATES FOR AN EVIDENTIARY HEARING.

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10. JENNIFER WEISSENSEE V. DAVID KRUEGER

22FLL0584

On December 19, 2025, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. The RFO and a blank FL-320 were served on December 23rd, however there was no Notice of Tentative Ruling served.

Petitioner filed her Responsive Declaration to Request for Order on February 13, 2026, it was served on February 12th.

On February 20th, Respondent filed an Objection to Petitioner's Response and Reply. However, the parties filed a Stipulation Re: CCRC and Child Visitation and Order on February 23rd wherein Respondent waived his objection and the parties stipulated to be re-referred to Child Custody Recommending Counseling (CCRC).

The court adopted the stipulation of the parties, re-referred them to CCRC and set a review hearing for the present date. Supplemental declarations were due to be filed and served no later than 10 days prior to the hearing date.

The parties attended CCRC on March 26th. A report with recommendations was prepared and mailed to the parties on May 7th.

Respondent and Petitioner each filed and served a supplemental declaration on May 7th.

Respondent is requesting joint physical custody of the minor children with increased visitation time. He further asks that the parties be ordered to refrain from interrogating the children on their time with the other parent and any co-parenting issues to be brought to the attention of the other party by way of the Talking Parents app.

Petitioner asks the court to maintain the custody and visitation orders set forth in the February 23rd stipulation of the parties. She asks that the minors participate in individual therapy and Respondent to do the same. She further requests an order for the parties to attend co-parenting classes, an order precluding Respondent from consuming alcohol during his parenting time, and an order that no third party be present during Respondent's parenting time with the minors.

After reviewing the filings as outlined above, the court finds the recommendations contained in the May 7, 2026 CCRC are in the best interests of the minors. They are hereby adopted as the orders of the court.